

Court No. - 2

Case :- WRIT - C No. - 68647 of 2010

Petitioner :- M/S J.P.C.

Respondent :- State Of U.P. Thru' Secry., Energy And Others

Petitioner Counsel :- Atul Mehra

Respondent Counsel :- C.S.C.,A.N. Singh,Tariq Naiyar

Hon'ble Sheo Kumar Singh,J.

Hon'ble Rajesh Chandra,J.

Heard Sri Mehra, learned Advocate in support of this petition, Km. Somya Mishra, learned Advocate holding brief of Sri Tariq Nayyar who appeared for the respondent 2 and 3 and Sri A. N. Singh, learned Advocate who appeared for the respondent no. 4.

Argument is that for unauthorised user of the load, petitioner was given assessment-cum-notice for huge amount upon which he filed appeal on deposit of 1/3rd amount and that appeal is still pending after the matter having been remanded by this Court and thus for claim of the petitioner for sanction of additional load the insistence of the respondents to furnish bank guarantee equivalent to the amount due in the earlier matter is not at all justified.

Submission is that in the similar set of facts on account of stay granted by this Court in writ petitions, about the demand of furnishing the bank guarantee, this Court granted interim protection in writ petition no. 58901 of 2007 (page 66 of the writ petition).

On the facts, we are satisfied that petitioner has made out a prima facie case for grant of stay.

We direct the respondents to sanction the additional load as prayed by the petitioner without insisting for bank guarantee of the amount due in the earlier assessment cum notice as that is subject matter of appeal but, however, other charges and formalities which are required to be completed/undertaken will be insisted to be completed preferably within a fortnight for sanction of the additional load.

It is further made clear that this protection is subject to final decision of the writ petition.

Respondents are to file counter affidavit on or before the date fixed.

List this matter in the week commencing 3rd January, 2011.

Order Date :- 25.11.2010

Sachdeva

Court No. - 39

Case :- WRIT - C No. - 68647 of 2010

Petitioner :- M/S J.P.C.

Respondent :- State Of U.P. Thru Secy. Energy And Others

Counsel for Petitioner :- Atul Mehra

Counsel for Respondent :- C.S.C.,A.N. Singh,Tariq Naiyar

Hon'ble Salil Kumar Rai,J.

Hon'ble Arun Kumar Singh Deshwal,J.

Heard learned counsel for the parties.

The present writ petition has been filed praying for writ of mandamus declaring the notice dated 20th October, 2010 (wrongly transcribed as 10th October, 2010 in place of 20th October, 2010 in the present writ petition) and Clause 4.49 of the Electricity Supply Code, 2005 as illegal and arbitrary. The notice dated 20th October, 2010 was issued asking the petitioner to complete the formalities for sanction of total load within 15 days from the date of issuance of notice.

It is stated in the petition that concerned Officers of Paschimanchal Vidyut Vitran Nigam Limited are asking the petitioner to deposit the balance amount due against him for his electricity connection in accordance with law as well as Clause 6 of the Office Memorandum dated 18th August, 2010. It is further being stated in the petition that the appeal has already been filed by the petitioner against penalty etc. imposed on him by the previous assessment order before the Managing Director, Regional Appellate Committee and Chief General Manager, Paschimanchal Vidyut Vitran Nigam Limited, Meerut Region, Meerut but it is now to be decided by the Divisional Commissioner, Meerut Division, Meerut. Therefore, petitioner cannot be asked to deposit the balance due against him in the light of previous assessment order, as the order is subject matter of appeal.

The appeal has been filed against assessment bill cum notice no. 5/02 dated 25th November, 2004 for Rs. 8,83,413/-. In the light of aforesaid, it has been further prayed that a mandamus be issued to the respondents restraining them from implementing Clause 6 of the Office Memorandum and not to ask the petitioner to deposit Rs. 8,83,413/- against the bill.

When the present petition was taken up as fresh case, this court passed the following interim order on 25th November, 2010, which is extracted herein below:-

"Heard Sri Mehra, learned Advocate in support of this petition, Km. Somya Mishra, learned Advocate holding brief of Sri Tariq Nayyar who appeared for the respondent 2 and 3 and Sri A. N. Singh, learned Advocate who appeared for the respondent no. 4.

Argument is that for unauthorised user of the load, petitioner was given assessment-cum-notice for huge amount upon which he filed appeal on deposit of 1/3rd amount and that appeal is still pending after the matter having been remanded by this Court and thus for claim of the petitioner for sanction of additional load the insistence of the respondents to furnish bank guarantee equivalent to the amount due in the earlier matter is not at all justified.

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On the facts, we are satisfied that petitioner has made out a prima facie case for grant of stay.

We direct the respondents to sanction the additional load as prayed by the petitioner without insisting for bank guarantee of the amount due in the earlier assessment cum notice as that is subject matter of appeal but, however, other charges and formalities which are required to be completed/undertaken will be insisted to be completed preferably within a fortnight for sanction of the additional load.

It is further made clear that this protection is subject to final decision of the writ petition.

Respondents are to file counter affidavit on or before the date fixed.

List this matter in the week commencing 3rd January, 2011."

In view of above, no useful purpose would be served in keeping the writ petition pending, therefore, this petition is **disposed of** with a direction to the Divisional Commissioner, Meerut Division, Meerut to decide the appeal filed by the petitioner within a period of six months from today and any deposits made by the petitioner to complete the formalities for additional load shall be subject to the decision of appellate authority as stipulated in the previous order dated 25th November, 2010. The General Manager, Appellate Committee shall transmit the records of the appeal to the Divisional Commissioner, Meerut Division, Meerut immediately on receipt of this order.

Copy of this order shall be sent by the Registrar (Compliance) to the General Manger, Appeal Committee, Office of the Managing Director, Paschimanchal Vidyut Vitran Nigam Limited, Victoria Park Meerut, and the Divisional Commissioner, Meerut Division, Meerut within one week from today.

Order Date :- 16.5.2023

Vikram